

TENTATIVE RULING

Case: **Lilliedoll v. Hays**
 Case No. CV-2026-0011

Hearing Date: **January 23, 2026** **Department Two** **1:30 p.m.**

Defendant Marilyn Hays' demurrer to the unlawful detainer complaint filed by plaintiff Gary Neil Lilliedoll on January 2, 2026, at 3:20 p.m. is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (d).) In ruling on a demurrer, this Court can only consider the complaint and matters judicially noticeable. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994; *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) While defendant asks the Court to consider a grant deed attached to the demurrer, defendant does not request judicial notice of this document. (See, e.g., Demurrer, p. 5.) Further, even if the Court were to take judicial notice of the grant deed, defendant has not provided sufficient legal authority for the proposition that Tina Lilliedoll must be joined as party to this action. (See Code Civ. Proc., § 389; Civ. Code, § 683, subd. (a).)

Defendant shall answer plaintiff's first amended complaint, filed January 6, 2026, by no later than **January 28, 2026**. (Cal. Rules of Court, rule 3.1320(g); Code Civ. Proc., § 1167.3.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Zhou v. Hotel Winters, LLC**
 Case No. CV-2022-1963

Hearing Date: **January 23, 2026** **Department Eight** **9:00 a.m.**

On the Court's own motion, defendant and judgment creditor Hotel Winters, LLC's motion to foreclose charging order is **CONTINUED** to **February 13, 2026**, at 9:00 a.m. in Department Eight.